

HOUSE BILL 769

By Littleton

AN ACT to amend Tennessee Code Annotated, Title 39,
relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 10, is amended by
adding the following new section:

(a)

(1) It is an offense for a person to knowingly possess, distribute, or
produce technology, software, or digital tools designed for the purpose of
creating material that includes a minor engaged in:

(A) Sexual activity; or

(B) Simulated sexual activity that is patently offensive.

(2)

(A) Possession of technology, software, or digital tools in violation
of subdivision (a)(1) is a Class E felony.

(B) Distribution of technology, software, or digital tools in violation
of subdivision (a)(1) is a Class C felony.

(C) Production of technology, software, or digital tools in violation
of subdivision (a)(1) is a Class B felony.

(b) In determining whether technology, software, or digital tools are designed for
the purpose of creating material that includes a minor engaged in sexual activity or
simulated sexual activity that is patently offensive, the court or other authority making

that determination shall, in addition to all other logically relevant factors, consider the following:

- (1) Statements by the defendant concerning its use;
- (2) The existence of material that includes a minor engaged in sexual activity or simulated sexual activity that is patently offensive in the defendant's possession;
- (3) Instructions, oral or written, provided with the technology, software, or digital tools concerning its use;
- (4) Descriptive materials accompanying the technology, software, or digital tools that explain or depict its use;
- (5) The manner in which the technology, software, or digital tools were advertised or offered when obtained by the defendant;
- (6) The existence and scope of legitimate uses for the technology, software, or digital tools in the community; and
- (7) Expert testimony concerning use of the technology, software, or digital tools.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.